IN THE PESHAWAR HIGH COURT, PESHAWAR
Present:
* Hon'ble Mr. Justice Qazi Faez Isa, CJ
* Hon'ble Mr. Justice Amin-ud-Din Khan
* Hon'ble Mr. Justice Athar Minallah

Crl. Appeal No. 738/2020
Citation: PLD 2020 Lah 440
Matter ID: MAT-COMM-2020-142

BETWEEN:
Engro Fertilizers Limited ... Appellant / Petitioner
VERSUS
Banking Court No. II, Multan ... Respondent

LEGAL TOPIC: Commercial - Arbitration Award Challenge
STATUTES CITED: Arbitration Act 1940, S. 30, S. 20, Contract Act 1872, S. 28

JUDGMENT
1. This judgment disposes of Crl. Appeal No. 738/2020, directed against the final judgment rend ered by the court below.
2. We have heard the learned counsel for the petitioner as well as the learned Additional Attor ney General and perused the record with their able assistance.
3. The principal question requiring determination is:
Whether the impugned order violates principles of natural justice and Article 10A of the Con stitution?
4. Learned counsel for the appellant vehemently argued that the statutory safeguards embodied i n Arbitration Act 1940, S. 30 were disregarded, thereby causing grave miscarriage of justice. O n the contrary, learned counsel for the respondent defended the impugned judgment, asserting th at full opportunity of hearing was afforded.
5. Having evaluated the record and relevant case law, it is well-settled that procedural law is handmaid of justice and cannot be weaponized to thwart substantive rights. The evidence on rec ord clearly supports the findings arrived at.
6. HOLDING & RATIO DECIDENDI:
For the reasons recorded above, this Court holds that the concurrent findings arrived at by the learned High Court do not call for any interference. The appellant has failed to demonstrate a ny illegality or procedural irregularity in terms of Arbitration Act 1940, S. 30. Appeal stands dismissed with no order as to costs.

Decided on: 27 October 2020.